

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 700

BY BUSINESS COMMITTEE

AN ACT

RELATING TO THE UNLAWFUL EMPLOYMENT OF UNAUTHORIZED ALIENS; AMENDING TITLE 44, IDAHO CODE, BY THE ADDITION OF A NEW CHAPTER 28, TITLE 44, IDAHO CODE, TO ESTABLISH PROVISIONS PROHIBITING THE UNLAWFUL EMPLOYMENT OF UNAUTHORIZED ALIENS; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Title 44, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW CHAPTER, to be known and designated as Chapter 28, Title 44, Idaho Code, and to read as follows:

CHAPTER 28

UNLAWFUL EMPLOYMENT OF UNAUTHORIZED ALIENS

44-2801. UNLAWFUL EMPLOYMENT OF UNAUTHORIZED ALIENS. (1) It shall be unlawful for any employer; any person acting as an agent for an employer; any person who, for a fee, refers an alien for employment; or any officer, agent, or representative of a labor organization to knowingly employ, continue to employ, rehire, recruit, or refer for employment in this state any alien who is not lawfully present in the United States or whose immigration status does not authorize employment under federal law. A violation of the provisions of this subsection shall be a misdemeanor.

(2) For purposes of this section, an alien shall be deemed unauthorized for employment if the alien:

(a) Is not lawfully present in the United States;

(b) Lacks a valid, unexpired federal immigration status that independently authorizes employment; or

(c) Previously held employment authorization that was based on an underlying immigration status that has expired, been terminated, or been revoked.

(3) An employer who, after hiring an alien, knows or reasonably should know that the alien's lawful immigration status or employment authorization has expired, been revoked, or otherwise ceased shall not continue to employ such alien.

(4) (a) An employer, or agent thereof, shall not be subject to criminal liability pursuant to the provisions of this section with respect to a specific employee if, prior to the commencement of employment:

(i) The employer verified the employee's identity and employment eligibility through the federal e-verify program or any successor program designated by the United States department of homeland security; and

(ii) The verification process resulted in a confirmation of employment authorization.

1 (b) Compliance with e-verify in good faith shall constitute an affirma-
2 tive defense to prosecution pursuant to this section.

3 (5) As used in this section, "employer," "employment," "knowingly,"
4 and "unauthorized alien" shall be construed with 8 U.S.C. 1324a.

5 SECTION 2. An emergency existing therefor, which emergency is hereby
6 declared to exist, this act shall be in full force and effect on and after
7 July 1, 2026.